

CORPORATION OF THE TOWN OF SMITHS FALLS

BY-LAW 10075-2019

**BEING A BY-LAW TO REGULATE THE OPERATION OF ALL-TERRAIN VEHICLES
ON MUNICIPAL HIGHWAYS WITHIN THE TOWN OF SMITHS FALLS**

WHEREAS pursuant to Section 191.8(3) of the Highway Traffic Act, R.S.O., 1990, Chapter H8, as amended, the Council of a municipality may pass by-laws:

1. permitting the operation of off-road vehicles with low pressure bearing tires on any highway within the municipality that is under the jurisdiction of the municipality, or any part or parts of such highway;
2. prescribing a lower rate of speed for All-Terrain Vehicles by regulation on any highway within the municipality that is under its jurisdiction, or on any part of parts of such highway including prescribing different rates of speed for different highways or parts of highways;

**NOW THEREFORE THE COUNCIL OF THE CORPORATION OF THE TOWN OF
SMITHS FALLS HEREBY ENACTS AS FOLLOWS:**

I. Title

This By-law shall be entitled the "All Terrain Vehicle By-law".

II. Definitions

"All Terrain Vehicle (ATV)" means an off-road vehicle as defined in O. Reg. 316/03, as amended by O. Reg 135/15, under the *Highway Traffic Act* entitled "Operation of Off-Road Vehicles on Highways"; and for the purposes of this by-law, All-Terrain Vehicle shall also include Multi-purpose Off-Highway Utility Vehicle and Recreational Off-Highway Vehicle as defined in O. Reg 316/03, as amended by O. Reg 135/15, under the *Highway Traffic Act* entitled "Operation of Off-Road Vehicles on Highways".

"Highway" includes a common and public highway, street, avenue, parkway, driveway, any part of which is intended for use or used by the general public for the passage of vehicles and includes the area between the lateral property lines thereof.

Multi-Purpose Off-Highway Utility Vehicle means an off-road vehicle as defined in O. Reg 316/03, as amended by O. Reg 135/15, under the *Highway Traffic Act* entitled "Operation of Off-Road Vehicles on Highways".

"Off-Road Vehicle" means an off-road vehicle within the meaning of the *Highway Traffic Act*, Ontario Regulation 316/03 – Operation of Off-Road Vehicles on Highways.

Recreational Off-Highway Vehicle means an off-road vehicle as defined in O. Reg 316/03, as amended by O. Reg 135/15, under the *Highway Traffic Act* entitled "Operation of Off-Road Vehicles on Highways".

III. Regulation of All-Terrain Vehicles on Highways

- 1) No person shall operate an All-Terrain Vehicle on a highway under municipal jurisdiction unless it meets the equipment requirements of Sections 7 to 15 of O. Reg. 316/03, as amended by O. Reg 135/15 and it is operated in accordance with Sections 16 to 24 of O. Reg 316/03, as amended by O. Reg 135/15.
- 2) No person shall operate an All-Terrain Vehicle at a rate of speed greater than;
 - i) 20 kilometers per hour, if the speed limit established under the *Highway Traffic Act* or by Municipal By-law for that part of the highway is not greater than 50 kilometers per hour, or
 - ii) 50 kilometers per hour, if the speed limit established under the *Highway Traffic Act* or by Municipal By-law for that part of the highway is greater than 50 kilometers per hour.
- 3) There shall be a curfew, in effect seven (7) days a week, from 11:00pm to 4:00am, when no off-highway vehicle shall be allowed to travel on roads under the jurisdiction of the Corporation of the Town of Smiths Falls.
- 4) Any All-Terrain Vehicle operating on permitted roads shall comply with the following provisions:
 - i) an All-Terrain Vehicle shall have visible reflective strips maintained on all four sides of the vehicles;
 - ii) an All-Terrain Vehicle shall not have chains or studs on its tires;
 - iii) an All-Terrain Vehicle will be driven in the same direction as traffic using the same side of the road and multiple Off-Road Vehicles will ride in single file one behind the other;

- iv) an All-Terrain Vehicle will be driven on the shoulder unless there is no shoulder, the shoulder is not wide enough, or the shoulder is obstructed, in which case will be driven close to and parallel with the right edge of the paved portion of the road;
- v) when making a left turn, and All-Terrain Vehicle shall, when it's safe to do so, move away from the shoulder, or the right edge of the roadway and be positioned on the roadway in the position from which the left turn is to be made.

IV. General

1. Operation of ATV's shall be subject to the provisions of this by-law and in accordance with Ontario Regulation 316/03, as amended by O. Reg 135/15, of the *Highway Traffic Act* and the *Off-Road Vehicles Act*, as amended.
2. Operation of ATV's shall be excluded on all highways within the Town of Smiths Falls with the exception of those areas listed in Schedule "A" appended hereto.
3. Schedule "A" appended hereto shall be deemed to be a part of this by-law to the same extend and effect as if incorporated herein.

V. Penalties

Any person who contravenes any section of this By-law is guilty of an offence and upon conviction is liable to such fines and penalties as are provided for in the Provincial Offences Act, or Schedule "B" of this by-law.

VI. Validity

If any provision or requirement of this By-law or the application thereof to any person shall to any extent be held to be invalid or unenforceable, the remainder of this By-law or the application of such provision or requirement to all persons other than those to which it is held to be invalid or unenforceable shall not be affected thereby and is hereby declared to be the intention of Council that each provision and requirement of this By-law shall be separately valid and enforceable to the fullest extent permitted by law.

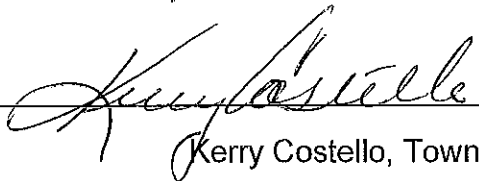
VII. Effect and Force

This By-law shall come into force and take effect upon the final passing thereof.

Read a first time and second time this 3rd day of September, 2019

Read a third time and finally passed this 3rd day of September, 2019


Shawn Pankow, Mayor


Kerry Costello, Town Clerk

I, Nadine Bennett
do hereby certify that to the best
of my knowledge, this photocopy is a true
likeness of the original.
Dated this 11 day of September, 2019
Nadine Bennett
A Commissioner for Taking Affidavits
Expires Nadine Bennett, Deputy Clerk, a Commissioner, etc.,
County of Lanark, for Corporation of the
Town of Smiths Falls

CORPORATION OF THE TOWN OF SMITHS FALLS

SCHEDULE "A" to BY-LAW 10075-2019

All-Terrain Vehicles shall be excluded on all highways within the Town of Smiths Falls with the exception of the following locations:

Street Name	From	To
Abbott Street	Ferrara Drive	South End of Fixed Bridge (Abbott Street)
Alfred Street	Abbott Street	Lombard Street
Cornelia Street West	William Street West	West Town Limit on Highway 43
Ferguson Drive	Ferrara Drive	Dead End (170m west of Ferrara Drive)
Ferrara Drive	Cataraqui Trail head on Ferrara Drive	Lombard Street
William Street West	Church Street West	Cornelia Street West

Note - Sponsoring ATV Club for all listed segments is Rideau Lakes ATV Club

CORPORATION OF THE TOWN OF SMITHS FALLS

SCHEDULE "B" to BY-LAW 10075-2019

Part I Provincial Offences Act – Set Fines

The sums to be paid as set fines are as follows:

Item	Column 1	Column 2	Column 4
	Short Form Wording	Provision Creating Offence	Set Fine
1	No visible reflective markings on four sides of ATV	S. 4 (i)	\$110
2	Travelling on a highway with tire studs or chains	S. 4 (ii)	\$110

Note: The general penalty provision for the offences listed above is Section 61 of the Provincial Offences Act, R.S.O, C. P. 33.